Outlook

Re: 2977 Lexington Avenue South

From Pattye Hechter <pattyeh@homelinemn.org>
Date Tue 9/23/2025 1:17 PM
To Bradley Crowe <bradcrowe@hotmail.com>

1 attachment (78 KB)
Private_attorney_list_3-2023.pdf;

Hi Bradley

You certainly did a good job of summarizing things for me. As a hotline service, HOME Line provides **brief,** free legal advice over email and phone; we do not offer direct representation. The questions you have relate to housing, to be sure, but also other areas of law which we cannot advise about. If you were to bring any action against your landlord, I would suggest you find a practitioner that can address all of your claims and attached is a short list of possible attorney referrals for you.

I hope this helps!

Pattye Hechter
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On Tue, Sep 23, 2025 at 12:38 AM Bradley Crowe <bradcrowe@hotmail.com> wrote:

> **To**: pattyeh@homelinemn.org **Subject**: Request for Legal Representation – Tenant Retaliation & Lease Fraud at Lexington Flats
>
> Dear Ms. Hechter, velair doc.rar

My apologies, I am not very up to date with all of this. I am very old school and it takes forever for me to even type a letter since i hunt and peck . i am pretty sure i have most of the documents pertain to this, ill try and attach some of them but, if not i can link them . Your time is valuable and I thank you in any and all help.

I'm seeking legal representation regarding retaliation, harassment, and lease fraud by Velair Property Management at Lexington Flats in Eagan, MN. I've lived in Unit #104 for five years with no prior infractions. Below is a summary of my case:

Client: Bradley A. Crowe **Co-Tenant**: Dena Sazama **Address**: 2977 Lexington Ave S, Unit #104, Eagan, MN 55121 **Phone**: 651-417-3946 **Email**: bradcrowe45@gmail.com

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Timeline of Events

- **Aug 13, 2025** – Velair offers lease renewal to me and my co-tenant.
- **Aug 17, 2025** – Our unit is listed publicly for rent—before any alleged lease violation.
- **Aug 18, 2025** – Velair issues a fabricated lease violation notice accusing Dena of "abuse" toward maintenance. No documentation provided.
- **Aug 30, 2025** – We sign and return the lease, despite being asked to backdate it—an irregular and coercive practice.
- **Sep 3, 2025** – I send a cease-and-desist letter citing harassment and retaliation by onsite manager Lisa Burg.
- **Sep 4–19, 2025** – Velair responds with vague accusations, refuses to provide documentation, and escalates intimidation. Lisa Burg calls police during peaceful inquiry.
- **Sep 19, 2025** – Velair claims I appeared "under the influence" and acted "belligerently"—again, no evidence or police report.
- **Sep 20, 2025** – I issued a Final Notice Before Legal Action, citing Minnesota Statutes § 504B.285 and § 504B.441. This notice formally demands that Velair cease all retaliatory actions, provide written documentation of any alleged violations, and restore leaseholder rights without prejudice. It also serves as a final opportunity to resolve these issues without litigation. Failure to comply will result in immediate legal action seeking injunctive relief, financial damages, and other remedies available under Minnesota law.

Legal Claims

- Retaliation under Minnesota tenant protection statutes
- Defamation and emotional distress
- Lease fraud and procedural misconduct
- Harassment and misuse of law enforcement

- Failure to provide formal notice to both leaseholders
- Deceptive contact practices (caller ID spoofing)

Supporting Documents Available

- Cease-and-desist letter (Sept 3)
- Follow-up letter (Sept 19)
- Final notice (Sept 20)
- Email thread with Velair
- Lease documents and timeline
- Caller ID records and incident log
- Video and witness evidence disputing alleged infractions

I am seeking injunctive relief, financial damages, and potentially a harassment restraining order. I'm also open to exploring class action if other tenants report similar treatment.

Please let me know if you or HOME Line can assist or refer me to appropriate counsel. I'm prepared to provide all documentation and evidence.

Sincerely, Bradley A. Crowe bradcrowe45@gmail.com 651-417-3946

From: Pattye Hechter <pattyeh@homelinemn.org>
Sent: Tuesday, September 9, 2025 10:44 AM
To: Bradley Crowe <bradcrowe@hotmail.com>
Subject: Re: 2977 Lexington Avenue South

Brad, I am having a very difficult time understanding what you may need from me. I see that your landlord gave you an infraction notice and purportedly claims that the lease could end 7 days after 8/18. Yet you make mention of a new lease renewal. Also, what appears to be a letter you sent to the landlord is undated but I would like to know if that was sent to the landlord, have they responded.

In short, as succinctly as possible, please let me know what questions you have for me. I do advise that as a hotline service, we do provide brief, free legal advice but we do not offer direct representation to sue your landlord.

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On Mon, Sep 8, 2025 at 10:19 AM Bradley Crowe <bradcrowe@hotmail.com> wrote:

Will do, thank you.

I am trying to put my thoughts in order. We are Waiting for them to serve us notice of court. Here is the letter that was hand delivered, Dena my roommate is the one Lisa burg is saying that was abusive. These accusations are false. At first I thought she was just mad because she had to call maintenance to our apt to fix ac unit again, that the new Maintenace man forgot to put a cap on the drain and apt got soaked and this time is from him forgetting to put a bolt back Lisa burg the manager had only been here for a couple of days the notice to vacate was delivered the day after maint came. On the 20th we went down to the office as it states on the paper to have her explain what this was all about , went to the office and knocked on door she jumped out of here chair shouting she was doing training ,slammed the door in our face and said she was calling the police. I said good I'll wait if it was up to me ide put a restraining order on her. the police came and left. I then had as cease and desist letter drafted and sent via e mail Attachment #2.. In the meantime, did some research into possibilities of why she is lying and accusing Dena of being abusive, well come to find out that lisa burg is trying to get herself a place her in the building. Found out that our apt was listed as for rent the day she started up here. I don't know if she forgot or what about the lease that was offered to us the week before she got here. Her nasty, violent, bulling ways are well known to Mangement, and they are ok with her treating tenants that way. The office incident was the first interaction I've ever had with her personally. Or so I thought in our second year here as residence we have never had a manager for more than 2 months maximum and their book keeping was riddled with incorrect data .The “rent cafe” tenants portal had some issue with accepting rent it wouldn't except partial payments and when the checks were in the mailbox and post marked by the first my rent is payed by check Denas is payment through the rent cafe app. I called corporate and inquired about this problem . There reply was well then get a money order its not our problem. we didn't receive your money by the 5th its late. That same month we receivrd a notice to pay all late fees or eviction sent by none other than Lisa burg. Kristine was the previous manager of the building , and is willing to go to court on our behalf . said she was going to file a restraining order on lisa burg says lisa has fits of rage gets in your face and bullies her way through stuff. lisa is the one to set up rent cafe we have been told. We have never had any complaints or infractions of any kind in our renel history going on 5 years . Dena suffers from sever anxziatys and lisa plays on that this incident has had a major effect on our peace full living .The effect on lisa reckless actions has damaged our peace and dena will not go out during the day for fear that lisa will be in the building as she might make up more lies to hurt her I suffer from the effects of lisa s ill intensions. along with Gus Denas support dog now she cant bring him out during the day lisa is in the office i still have to go get the mail and make sure lisa is not here. there is alot more but that should be enough for now.

we have signed another year lease that was offered us we are waiting for them to send us a copy back or an excuse for why they are rnot excepting it .. We have not received any notice what so ever besides the one that is enclosed the ball is with them I really dont think they will proceed with an eviction I have them dead to rigjhtswe have a reliable person willing to spoeak on our behalf in court the previous manager. iam waiting for response from velair atm. until I make my move . i plan on taking this all the way things like this should not be allowed to happen not only to dena but anyone i am a firm believer that rights right wrongs wrong for me to allow this to happen to

anyone i cant drop it. My objectives is to have lisa removed from any employment dealing with humans or animals and velair to pay for Dena for pain ands sufferring all leagal cost and fees i want velair to hurt right were they will hurt the most $$$ maximum amount its the only way to make them look. I am currently looking into their insurance company and who is backing them and a list of building owner too let them know they are ultimately liable for there management . can you help/

Bradley crowe

The Problem: Rent Processing Delay + Partial Payment Restriction

❌ **Online Portal Blocks Partial Payments Until Rent Is "Late"**

- This forces tenants to either:
  - Pay the full amount upfront (even if splitting with a roommate), or
  - Wait until the system marks rent as "late," triggering fees or eviction risk.

❌ **Mailed Check Not Processed Until the 6t**

- Even if mailed on time, management delays entry until after the 5th—when rent is considered late.
- This violates the **"mailbox rule"**: under Minnesota law, rent sent by mail is considered paid on the **postmark date**, not the date received.

Violation of Statutory Duties

Under **Minnesota Statutes § 504B**, landlords are required to:

- Maintain the premises in reasonable repair (unless waived in writing for single-family homes).
- Provide proper notice for entry, lease changes, or eviction.
- Respond to tenant concerns in good faith.

Failure to communicate about repairs, accusations, or lease issues may violate these duties—especially if it results in unsafe conditions or retaliatory behavior.

2. Retaliation and Procedural Abuse

If management accuses a tenant of misconduct (e.g. abuse toward maintenance) but fails to:

- Notify the tenant formally,
- Offer a chance to respond,
- Document the incident properly,

...it may be seen as **retaliation** or **procedural unfairness**. Courts often view vague or undocumented accusations with skepticism—especially if they follow tenant complaints or legal action.

3. Due Process and Fair Housing Concerns

- **Due Process**: Tenants have a right to know what they're being accused of and to respond.
- **Fair Housing**: If communication lapses disproportionately affect certain tenants (e.g. based on disability, race, or income), it may raise **discrimination concerns** under federal or state law.

From: Pattye Hechter <pattyeh@homelinemn.org>
Sent: Tuesday, September 2, 2025 11:19 AM
To: bradcrowe@hotmail.com <bradcrowe@hotmail.com>
Subject: Re: 2977 Lexington Avenue South

Hi Brad

Please send me any written communication you have received about your lease and notices to end it. Also, if you feel the landlord is attempting to end your lease to retaliate against you for some action you took, please detail that for me in an email as well.

I will await your response.

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On Fri, Aug 29, 2025 at 1:25 PM Pattye Hechter <pattyeh@homelinemn.org> wrote:

Hello Brad

To recap

Though I haven't seen your lease, you described it as ending on 10/31/2025 with a 60 day notice requirement. If you do not wish to continue renting at this property, you should review the lease to see if there is any specific language about the manner (USPS, email, etc.) that notices are to be sent and advise

your landlord that you are giving your 60 day notice to end the lease on 10/31 and it wouldn't hurt to ask them to confirm receipt of your message.

Please feel free to reach out to me again if you have any additional questions or concerns.

HOME Line
A nonprofit Minnesota tenant advocacy organization

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